

Calendar Line 2

Case Name: Patel et al. (Cross Complainants) v. Hoge, Fenton, Jones & Appel, Inc. (Cross Defendants)

Case No.: 23CV416938

Cross-Defendant's Motion to Compel discovery responses, including written responses to Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; for an order deeming Requests for Admission admitted; for an order deeming objections waived; and for reasonable attorneys' fees and costs incurred in bringing the motion.

Cross-Complainants represents that responses have now been served and that additional supplemental responses and document production are forthcoming. Cross-Defendant contends the supplemental responses remain incomplete, evasive, and deficient.

The Court acknowledges Cross-Defendant's frustration with Cross-Complainants' delayed and piecemeal discovery responses. The record reflects that the discovery at issue was propounded approximately five to seven months ago and that responses were not served until after motion practice commenced. The Court does not condone dilatory discovery conduct.

The Court further notes that trial has now been continued to April 2027 (see Line 7), substantially reducing any immediate prejudice arising from the delayed discovery responses and allowing the parties sufficient time to complete discovery without further unnecessary motion practice.

Accordingly, the motion is GRANTED IN PART and DENIED IN PART.

To the extent Cross-Complainant has now served responses to the discovery at issue, the motion is denied as moot. The Court declines at this time to deem the Requests for Admission admitted or to issue a blanket order deeming all objections waived.

However, the Court finds further relief appropriate given the delayed and piecemeal nature of the discovery responses. The parties are ordered to meet and confer in good faith regarding the specific remaining deficiencies in the discovery responses and document production. Within 7 calendar days of the hearing, Cross-Complainant shall serve a schedule identifying the categories of responsive documents remaining to be produced and the anticipated dates for production. Any supplemental responses and responsive documents shall be served no later than 30 calendar days from the hearing date absent further written agreement of the parties.

The Court further finds that Cross-Defendant was substantially justified in bringing the motion at the time it was filed due to Cross-Complainants' delayed responses and piecemeal compliance. Although subsequent responses have narrowed the issues presented, they do not negate the necessity of the motion when filed.

Accordingly, the Court awards reduced monetary sanctions in favor of Cross-Defendant and against Cross-Complainant in an amount representing reasonable attorneys' fees and expenses incurred in bringing the motion. If no party contests the tentative ruling, the final sanctions amount shall be reduced.

Cross-Defendant shall file and serve a supplemental declaration outlining the calculation of attorneys' fees and costs sought, together with a proposed order. Cross-Defendant shall prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Calendar Line 3

Case Name: *Sophie Yeh v. The Harker School, et al.*

Case No.: 23-CV-418929

Factual and Procedural Background

On September 23, 2025, cross-complainant The Harker School (“Harker”) filed a cross-complaint against cross-defendant Commercial Tree Care (“CTC”) alleging causes of action for: (1) fraud; (2) breach of contract; (3) negligence; (4) equitable indemnity; (5) apportionment/contribution; and (6) Bus. & Prof. Code, § 17200, et seq.

On November 20, 2025, Harker dismissed the sixth cause of action from the cross-complaint.

Currently before the court is a motion to strike the request for punitive damages in the cross-complaint by cross-defendant CTC. Harker filed written opposition. CTC filed reply papers.

Trial is scheduled for October 12, 2026.

Motion to Strike Request for Punitive Damages

“In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. [Citation.] These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. [Citation.] ‘“Malice” ’ is defined in the statute as conduct ‘intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.’ [Citations.] ‘“Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.’ [Citation.] ‘“Fraud” ’ is ‘an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.’ [Citation.]” (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

“In determining whether a complaint states facts sufficient to sustain punitive damages, the challenged allegations must be read in context with the other facts alleged in the complaint. Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants’ conduct may adequately plead the evil motive requisite to recovery of punitive damages. [Citation.]” (*Monge v. Super. Ct.* (1986) 176 Cal.App.3d 503, 510.)

“When a defendant must produce evidence in defense of an exemplary damage claim; fairness demands that he receive adequate notice of the kind of conduct charged against him.” (*G.D. Searle & Co. v. Super. Ct.* (1975) 49 Cal.App.3d 22, 29.)

The operative cross-complaint includes a fraud claim alleging that:

- CTC knowingly, intentionally, and falsely with deceit represented to Harker, through written and oral conversations and contracts and its website, its capabilities, its scope of work, and its assessments of the trees on Harker's campuses.
- It was CTC's intent to induce Harker to rely upon these representations in the care, management, and maintenance of the trees on Harker's campuses.
- Harker justifiably relied upon CTC's representations as International Society of Arboriculture certified arborists retained to perform certain work and duties.
- CTC acted with an intent to deceive by making representations and promises related to their services and expertise, knowing they would not in fact provide those services to Harker. (See Cross-Complaint at ¶¶ 21-23, 27.)

Here, cross-defendant CTC argues there are insufficient facts pled to support an award of punitive damages, including Harker's allegations incorporated in the fraud cause of action. But, to the extent that CTC contends the fraud claim has not been adequately pled, the proper procedural vehicle for challenging the sufficiency of the fraud cause of action is by demurrer, or if an answer is filed, by motion for judgment on the pleadings. (See *Angie M. v. Super. Ct.* (1995) 37 Cal.App.4th 1217, 1223 ["A demurrer tests the sufficiency of the pleadings, the allegations of which must be accepted as true by the court for purposes of review."]; *Osornio v. Weingarten* (2004) 124 Cal.App.4th 304, 315 [A general demurrer is where the complaint fails to state facts sufficient to constitute a cause of action.]; see also *Hong Soo Shin v. Oyoung Kong* (2000) 80 Cal.App.4th 498, 502-503 ["[T]he purpose of a motion for judgment on the pleadings is to test the sufficiency of the pleadings."].) CTC has not filed any separate demurrer or motion for judgment on the pleadings to challenge the fraud claim. And, a well-pleaded fraud claim is sufficient to support an award for punitive damages. (See *Stevens v. Super. Ct.* (1986) 180 Cal.App.3d 605, 610 [pleading of fraud is sufficient for punitive damages].)

Consequently, the motion to strike the request for punitive damages is DENIED.

Disposition

The motion to strike the request for punitive damages is DENIED.

The court will prepare the Order.

Calendar Line 6

Case Name: *Ximen v. Linktel Technologies, Inc.*

Case No: 25CV481671

Code of Civil Procedure section 413.30 authorizes the Court to direct a manner of service reasonably calculated to give actual notice where no statutory provision specifically governs the circumstances presented. Due process requires a method of service reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to respond.

Plaintiff has demonstrated reasonable diligence in attempting personal service. The supporting declarations further reflect that Defendants previously communicated through the identified email address concerning matters related to this dispute, but appear to have ceased communications while simultaneously avoiding traditional service attempts. Although the evidence of recent use of the email address is limited, there is no indication the address is inactive or undeliverable.

The Court further notes that service by publication is authorized pursuant to Code of Civil Procedure section 415.50 upon a sufficient showing of diligence. However, publication is generally regarded as a method of last resort and, under the circumstances presented here, appears no more likely to provide actual notice than electronic service directed to an email address previously utilized by Defendants in connection with the underlying dispute.

Under the totality of the circumstances, the Court finds that alternative service by email, together with mailing to Defendants' last known address, is reasonably calculated to provide actual notice and satisfies due process.

Accordingly, Plaintiff is authorized to serve the summons, complaint, and all accompanying papers by: (1) transmitting them to Defendants at known email addresses, and (2) mailing copies to Defendants' last known mailing address. Plaintiff shall thereafter file a proof of service identifying the email address and mailing address utilized and attaching confirmation of transmission and mailing. Service shall be deemed complete upon transmission and deposit in the mail.

Plaintiff to prepare the final proposed order accompanied by necessary Form EFS-020 within 7 days of the hearing.

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